Brightspace by D2L

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Notice
02. Privacy Center
03. Corporation Legal Policies | D2L
04. Do Not Sell My PI
05. Cookies Policy
06. D2L's Third Party Subprocessors | D2L
07. General Data Protection Regulation | D2L
08. Terms of Use
09. Security
10. Best Practices Best Practices Layered safeguards that manage access and reduce exposure.
11. Compliance Compliance Recognized standards that help customers evaluate trust.
12. Data Center Security | D2L
13. Protection Protection Built-in safeguards for Brightspace and customer data.

Competitor website

01 | Privacy Notice

https://www.d2l.com/legal/privacy-notice/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

Privacy Notice

Privacy Notice

Last Updated: February 27, 2026 (view archived versions)

D2L Corporation and its family of companies

1. INTRODUCTION

1.1 About This Notice

D2L Corporation and its family of companies (“D2L”, “we”, “us”, or “our”) are committed to protecting your Personal Information and respecting your privacy rights. This Privacy Notice explains how we collect, use, disclose, and safeguard your Personal Information when you:

Visit our websites, including www.D2L.com and associated D2L websites

Use our Brightspace learning management system and related services

Use our Apps (for professionals and parents/ tutors)

Interact with our products, services, and applications

Contact us or engage with our sales, professional services, support, and customer success teams

Attend our conferences or events

Apply for employment opportunities

1.2 Data Controller and Contact Information

Data Controller | D2L Corporation Email: 137 Glasgow Street, Suite 560 Kitchener, ON, Canada N2G 4X8 |

Data Protection Officer | Name: Taylor Burnie Email: Address: As above |

EU Representative (including UK and Switzerland) | D2L Europe Ltd. c/o Taylor Wessing LLP 5 New Street Square London EC4A 3TW United Kingdom Attn: Data Protection Representative |

1.3 Scope and Application

This Privacy Notice applies to:

Enterprise Users: Individuals who access Brightspace or other D2L services through an agreement between D2L and their organization (educational institution, employer, or other entity). In this case, that organization acts as the “Controller” and D2L acts as a “Processor”, meaning D2L solely undertakes the Processing of Personal Information under the instructions of the Controller and for the Controller’s purposes.

Consumer Users: Individuals who access Brightspace or other D2L products and services through an agreement directly with D2L.

Data Subjects: Natural persons whose Personal Information is processed by D2L through its platforms and tools. This includes situations where D2L acts as a Processor on behalf of a Controller (usually educational institutions) using our Brightspace Platform, with the Data Subjects being students or their parents/guardians (in the case of minors). Where a sole trader registers with D2L Services to deliver teaching services to others, that natural person will be both a Data Subject and a Controller: as a sole trader, all data relating to their business is Personal Information, and as the party providing instructions to D2L regarding Processing Activities, they are the Controller.

Website Visitors: Natural Persons who visit D2L websites without creating an account.

Important Note for Enterprise Users: If you access our services through an Organization, it is the Organization that acts as the data controller for the Personal Information it collects and processes through our services. This Privacy Notice governs D2L's Processing of your Personal Information under the instructions of the Controller. For information about what specifically those Personal Information Processing Activities consist of, please contact your Organization directly. |

2. LEGAL BASIS FOR PROCESSING

We process your Personal Information only when we have a valid and documented Legal Basis under applicable Personal Information Protection Legislation, and that depends on the Purpose and Scope of the Processing Activities – that is, the reasons and methods for which we carry out such processing as outlined below:

2.1 Contractual Necessity

Processing is necessary to perform our contract with a Controller (you or your organization), including, but not limited to:

Creating and managing user accounts

Providing access to the Brightspace Platform and related services

Delivering professional services, support, and customer success services

Processing payments and managing subscriptions

Communicating about service delivery and account management

2.2 Legitimate Interests

Processing is necessary for our Legitimate Interests or those of a third party, provided your rights do not override these interests:

Improving and optimizing our products and services

Conducting analytics to understand service usage and performance

Preventing fraud, security threats, and unauthorized access

Marketing our services to existing customers

Managing business operations and corporate transactions

Protecting our legal rights and interests

Before relying on Legitimate Interests, we conduct balancing assessments to ensure your rights are protected.

2.3 Legal Obligations

Processing is necessary to comply with Legal Obligations, including but not limited to:

Responding to lawful requests from authorities

Complying with tax, accounting, and regulatory requirements

Meeting data protection and security obligations

Fulfilling obligations under the US Family Educational Rights and Privacy Act (FERPA) where applicable

2.4 Consent

Where required by law or chosen by us, we Process Personal Information based on your explicit consent, such as:

Marketing communications to prospects and non-customers

Non-essential cookies and tracking technologies

Processing of special categories of Personal Information (where applicable)

International transfers where no other safeguard is available

Your right to withdraw consent: You may withdraw your consent at any time by contacting us at . Withdrawal does not affect the lawfulness of Processing before withdrawal.

2.5 Special Categories of Personal Information

We do not intentionally collect special categories of Personal Information (racial or ethnic origin, political opinions, religious beliefs, trade union membership, genetic data, biometric data, health data, sex life, or sexual orientation) through D2L services and tools.

Controller may however collect and submit for processing through Brightspace (e.g., health information for accessibility accommodations, etc.) hence the Controller must ensure it has appropriate Legal Basis under applicable Personal Information Protection Legislation (e.g. GDPR Article 9(2)) to undertake such processing, including having the Data Subjects informed.

3. PERSONAL INFORMATION WE COLLECT

We collect and process the following categories of Personal Information:

3.1 Identity and Contact Data

What we collect: Full name, username, email address, telephone number, postal address, job title, employer/organization name

Source: From the Controller or directly from you during registration, account creation, or communications

Purpose: Account management, service delivery, communication, support

Legal Basis: Contractual Necessity, Legitimate Interests

3.2 Account and Authentication Data

What we collect: Login credentials, user ID, passwords (encrypted), security questions and answers, authentication tokens

Source: From the Controller or directly from you during registration or generated by our systems

Purpose: Account access, security, authentication

Legal Basis: Contractual Necessity

3.3 Financial and Transaction Data

What we collect: Credit card information (last 4 digits only), billing address, payment history, purchase records, subscription details

Source: From the Controller or directly from you during purchase or processed by third-party payment Processors

Purpose: Processing payments, billing, financial record-keeping

Legal Basis: Contractual Necessity, Legal Obligations

3.4 Technical and Usage Data

What we collect:

Device information (device type, operating system, browser type and version)

IP address and location data

Log files and access records

Cookies and similar tracking identifiers

Page views, clicks, navigation paths, and feature usage

Session duration and timestamps

Referral sources and exit pages

Source: Automatically collected through our services and websites

Purpose: Service provision, security, analytics, improvement of services, troubleshooting

Legal Basis: Legitimate Interests, Contractual Necessity, Consent (for non-essential cookies)

3.5 Content and Communication Data

What we collect:

Course content, assignments, submissions, and grades (for enterprise users through organizations)

Messages, comments, forum posts, and chat communications

Support tickets and correspondence

Webinar registrations and attendance

Survey responses and feedback

Source: Created by you through use of services or communications with us

Purpose: Service delivery, support, improvement of services

Legal Basis: Contractual Necessity, Legitimate Interests, Consent (where applicable)

3.6 Professional and Demographic Data

What we collect: Industry, organization type and size, role/position, professional interests, age range, location (country/region), language preferences

Source: Provided by you during registration or voluntarily

Purpose: Service customization, analytics, marketing (with appropriate Legal Basis)

Legal Basis: Contractual Necessity, Legitimate Interests, Consent (for marketing)

3.7 Marketing and Preference Data

What we collect: Marketing preferences, communication preferences, event attendance, webinar participation, content downloads, newsletter subscriptions

Source: Provided by you or derived from your interactions

Purpose: Marketing communications, event management, preference management

Legal Basis: Consent, Legitimate Interests (for existing customers)

3.8 Education Records (Enterprise Users Only)

What we collect: Student education records as defined under FERPA (for US-based educational institutions)

Source: Collected by your organization through Brightspace

Purpose: Providing educational services as directed by your organization

Legal Basis: Contractual Necessity (with your organization)

Note: D2L acts as a “school official” under FERPA and processes this data solely on behalf of educational institutions

3.9 Recruitment Data (Job Applicants)

What we collect: CV/resume, cover letter, application forms, references, interview notes

Source: Provided by you through our careers portal

Purpose: Recruitment and hiring processes

Legal Basis: Contractual Necessity (pre-contract), Legitimate Interests

3.10 Data We Do NOT Collect

We do not knowingly collect directly:

Personal Information from children under 13 years of age through consumer offerings or public websites (without verifiable parental Consent)

Government-issued identification numbers (e.g., social security numbers, passport numbers) unless legally required for employment purposes

Precise geolocation data beyond IP-based location

Special Categories of Personal Information through D2L websites or consumer offerings (as Controller)

NOTE: We undertake the Processing of Personal Information pertaining to children where those are students of our Controllers under the instructions of those Controllers.

4. HOW WE USE YOUR PERSONAL INFORMATION

4.1 Service Delivery and Performance

For Enterprise Users:

Providing access to Brightspace learning management system

Enabling course creation, content management, and learning activities

Facilitating communication and collaboration features

Supporting assessments, grading, and progress tracking

Providing analytics and reporting to your organization

Delivering professional services, training, and implementation support

Providing technical support and troubleshooting

For Consumer Users:

Creating and managing your account

Providing access to subscribed services

Processing your transactions and managing billing

Delivering customer support

Sending service-related communications (account notifications, security alerts, system updates)

4.2 Service Improvement and Development

Analysing usage patterns and service performance

Conducting research to improve our products and services

Developing new features and functionalities

Testing and quality assurance

Troubleshooting technical issues

4.3 Communication and Marketing

Sending newsletters and promotional communications (with Consent or Legitimate Interest)

Informing you about new features, products, and services

Conducting surveys and requesting feedback

Managing event registrations (webinars, conferences, training sessions)

Providing relevant content and resources

You can exercise your Right to Object to the Processing of your Personal Information for marketing communications purposes at any time using the unsubscribe link in emails or by contacting .

4.4 Security and Fraud Prevention

Protecting against unauthorized access and security threats

Detecting and preventing fraud and abuse

Investigating security incidents

Enforcing our terms of service and policies

Maintaining system integrity and availability

4.5 Legal Compliance and Protection

Complying with legal obligations and regulatory requirements

Responding to lawful requests from authorities

Establishing, exercising, or defending legal claims

Protecting our rights, property, and safety

Meeting audit and compliance requirements

4.6 Business Operations

Managing corporate transactions (mergers, acquisitions, asset sales)

Maintaining business records

Conducting financial management and reporting

Managing vendor and partner relationships

5. DISCLOSURE AND SHARING OF PERSONAL INFORMATION

5.1 When We Share Your Personal Information

We may disclose your Personal Information to the following categories of recipients:

5.1.1 Internal Service Providers and Processors

We engage third-party service providers to perform functions on our behalf. These Processors only access and process your Personal Information according to our instructions:

Cloud hosting and infrastructure providers: Amazon Web Services (AWS), Microsoft Azure (data centres in Canada, the European Union, United States, India, Ireland, Australia, Singapore)

Payment Processors: payment service providers

Customer support platforms: Salesforce, customer relationship management (CRM) systems

Email and communication services: email platforms, communication platforms

Analytics providers: Google Analytics, product analytics platforms

Security and monitoring services: Security incident and event management (SIEM) tools

Professional services providers: Implementation consultants, training providers

All Processors are bound by data Processing agreements that ensure compliance with applicable Personal Information Protection Legislation, including appropriate technical and organizational measures.

5.1.2 Your Organization (Enterprise Users)

If you are an Enterprise User, we share data with your organization as necessary to provide services and support. Your organization determines what data is collected and how it is used within Brightspace.

5.1.3 With Our Sub-Processors (Enterprise Users)

If you are an Enterprise User, we use certain Sub-Processors while providing services to your organization. All Sub-Processors are bound by data processing agreement that ensure compliance with all applicable Personal Information Protection Legislation, including appropriate technical and organizational measures. A full list of our Sub-Processors is available here.

5.1.4 Other Users (With Your Permission)

When you use collaboration features (forums, chat, shared content), you must realize that you choose to share information with other users and, once shared, those other users may further share this information at their discretion.

5.1.5 Legal and Regulatory Authorities

We may disclose Personal Information when required by law or when we have a good faith belief that disclosure is necessary to:

Comply with Legal Obligations, court orders, or lawful government requests

Enforce our terms of service or policies

Protect the rights, property, or safety of D2L, our users, or the public

Detect, prevent, or address fraud, security, or technical issues

5.1.6 Corporate Transactions

In the event of a merger, acquisition, reorganization, or sale of assets, your Personal Information may be transferred to the successor entity. You will be notified via email and/or prominent notice on our website of any such change, and you will be informed of choices you may have regarding your Personal Information.

5.2 When We Do NOT Share Your Personal Information

We do not:

Sell your Personal Information to third parties under any circumstances.

Share your Personal Information for third-party marketing purposes without your explicit Consent.

Transfer Personal Information to third parties unless appropriate safeguards are in place (see Section 6)

6. INTERNATIONAL DATA TRANSFERS

6.1 Overview of Transfers

D2L is headquartered in Canada, with offices and service providers located globally, including in the United States, Ireland, Australia, Singapore, Brazil, and India. When we process your Personal Information, it may be transferred to, stored in, and accessed from countries outside the European Economic Area (EEA), United Kingdom, and Switzerland, or other countries where the Data Subjects we undertake the Processing of Personal Information reside and may have Personal Information Protection laws with some “localization” requirements.

Not all countries outside the EEA provide the same level of data protection as EEA countries. When we transfer your Personal Information internationally, we implement appropriate safeguards to protect your data.

6.2 Safeguards for International Transfers

6.2.1 Adequacy Decisions

We transfer data to countries that the European Commission has determined provide adequate protection:

Canada: D2L’s headquarters and primary data processing location (European Commission adequacy decision for commercial organizations under PIPEDA)

6.2.2 Standard Contractual Clauses (SCCs)

For transfers to service providers and affiliates in countries without adequacy decisions, we use the European Commission’s Standard Contractual Clauses (SCCs). These are legally binding commitments between D2L and the data recipient to protect your Personal Information.

You may request a copy of the SCCs we use by contacting .

6.2.3 Transfers to the United States

D2L complies with the EU-U.S. Data Privacy Framework (EU-U.S. DPF) and the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework (Swiss-U.S. DPF) as set forth by the U.S. Department of Commerce. D2L has certified to the U.S. Department of Commerce that it adheres to the EU-U.S. Data Privacy Framework Principles (EU-U.S. DPF Principles) with regard to the processing of Personal Information received from the European Union and the United Kingdom in reliance on the EU-U.S. DPF and the UK Extension to the EU-U.S. DPF. D2L has certified to the U.S. Department of Commerce that it adheres to the Swiss-U.S. Data Privacy Framework Principles (Swiss-U.S. DPF Principles) with regard to the processing of Personal Information received from Switzerland in reliance on the Swiss-U.S. DPF. If there is any conflict between the terms in this Privacy Policy and the EU-U.S. DPF Principles and/or the Swiss-U.S. DPF Principles, the Principles shall govern. To learn more about the Data Privacy Framework (DPF)

Program, and to view our certification, please visit https://www.dataprivacyframework.gov/

D2L is accountable for the processing of Personal Information it receives, and we are subject to the investigatory and enforcement powers of the Federal Trade Commission. To the extent allowed by law, D2L may be required to disclose Personal Information in response to a lawful request by public authorities, including to meet national security or law enforcement requirements. Any such disclosure will be the minimum required by law.

In compliance with the EU-U.S. DPF and the UK Extension to the EU-U.S. DPF and the Swiss-U.S. DPF, D2L commits to resolve DPF Principles-related complaints about our collection and use of your personal information. EU and UK individuals and Swiss individuals with inquiries or complaints regarding our handling of Personal Information received in reliance on the EU-U.S. DPF and the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. DPF should first contact D2L at or write to us at:

D2L Corporation

Attn: DPO

137 Glasgow St Suite 560

Kitchener, ON N2G 4X8

cc: Legal Department

We will respond within 45 days of receiving the inquiry or compliant. If you have unresolved privacy or data concerns, please contact our third party alternative dispute resolution provider, JAMS, located in the United States (free of cost) at https://www.jamsadr.com/DPF-Dispute-Resolution. If your DPF complaint cannot be resolved through the above channels, under certain conditions, you may invoke binding arbitration for some residual claims not resolved by other redress mechanisms. With respect to your Personal Data received or transferred, pursuant to the Data Privacy Framework, D2L shall remain liable under the DPF Principles if its agent processes such personal information in a manner inconsistent with the DPF Principles, unless it is shown that D2L is not responsible for the event giving rise to the damage.

6.3 Your Rights Regarding International Transfers

You have the right to:

Obtain information about the safeguards we use for international transfers

Object to specific transfers if you believe adequate safeguards are not in place

Request copies of relevant safeguard documents (with confidential information redacted)

To exercise these rights, contact .

7. DATA RETENTION

7.1 General Retention Principles

We retain your Personal Information only for as long as necessary to fulfil the purposes for which it was collected, comply with Legal Obligations, resolve disputes, and enforce our agreements.

7.2 Enterprise User Data Retention

For enterprise users, retention is governed by:

The agreement between D2L and your organization

Your organization’s retention policies and instructions

Applicable legal requirements (e.g. FERPA for educational institutions)

Your organization controls when and how data is deleted. To request deletion of your data, contact your organization.

7.3 Deletion Methods

At the end of the retention period, we:

Delete: Permanently remove data from our active systems

Anonymize: Remove identifying elements so data can no longer be attributed to you

Archive: Move data to secure, segregated storage (only when required by law)

Data in backup systems is deleted according to our backup rotation schedule (maximum 90 days).

7.4 Exceptions

We may retain Personal Information beyond the standard retention period when:

Required by law or regulation

Necessary for legal claims or disputes

Required for audit or compliance purposes

You have requested extended retention (e.g., for reference purposes)

8. YOUR RIGHTS UNDER PERSONAL INFORMATION PROTECTION LEGISLATION, PRIMARILY THE GDPR

As a data subject in the EEA, United Kingdom, or Switzerland, you have the following rights under the GDPR. These rights are subject to certain conditions and limitations under Personal Data Protection Legislation.

Data subjects in other countries may have similar rights under their applicable Personal Information Protection laws. D2L will process all valid and legal data subject rights requests in accordance with applicable law, subject to any applicable exemptions or exceptions provided by law. D2L will respond to such requests within the timeframes required by applicable law.

Note for Enterprise Users: If you access services through an organization, your organization is the Controller of your Personal Information. The details provided below may not apply to your situation. Submit requests to your organization. |

8.1 Right of Access

You have the right to obtain confirmation of whether we process your Personal Information and, if so, to access that data and receive information about:

The categories of Personal Information Processed

The purposes of processing

The recipients or categories of recipients

The retention period or criteria for determining it

Your other GDPR rights

The source of the data (if not collected from you)

The existence of automated decision-making, including profiling

How to Exercise: Submit a request to

Response time: We will respond within one month. In complex cases, we may extend this by two additional months with explanation.

Format: We will provide a copy of your Personal Information in a commonly used electronic format, free of charge. Additional copies may incur reasonable administrative fees.

8.2 Right to Rectification

You have the right to request correction of inaccurate or incomplete Personal Information.

How to exercise:

For account information: Log into your account and update your profile

For other data: Contact with details of the corrections needed

Response time: We will correct or update data within one month and notify any third parties to whom we disclosed the data (unless impossible or involves disproportionate effort).

8.3 Right to Erasure / “Right to be Forgotten”

You have the right to request deletion of your Personal Information in the following circumstances:

The data is no longer necessary for the purposes for which it was collected

You withdraw consent (where processing was based on consent)

You object to processing and there are no overriding legitimate grounds

The data was processed unlawfully

Deletion is required to comply with a Legal Obligation

The data was collected from a child in relation to information society services

Limitations: We may refuse deletion if processing is necessary for:

Exercising the right of freedom of expression and information

Compliance with Legal Obligations

Public interest in public health

Archiving purposes in the public interest, scientific or historical research, or statistical purposes

Establishment, exercise, or defence of legal claims

How to exercise: Submit a request to

8.4 Right to Restriction of Processing

You have the right to request that we restrict Processing of your Personal Information in the following circumstances:

You contest the accuracy of the data (restriction during verification period)

Processing is unlawful but you oppose deletion and request restriction instead

We no longer need the data, but you need it for legal claims

You have objected to processing (restriction pending verification of overriding legitimate grounds)

Effect of restriction: We will store the data but not further process it (except with your consent, for legal claims, to protect another person’s rights, or for important public interests).

How to exercise: Submit a request to

8.5 Right to Data Portability

You have the right to receive your Personal Information in a structured, commonly used, and machine-readable format, and to transmit that data to another controller where:

Processing is based on consent or contract

Processing is carried out by automated means

Data covered: Personal Information you provided to us (does not include derived or inferred data).

How to exercise: Submit a request to specifying the data you want to receive and the format (if any preference).

Response time: Within one month

Format options: JSON, CSV, XML, or other commonly used formats

8.6 Right to Object

8.6.1 Object to Processing Based on Legitimate Interests

You have the right to object at any time to processing based on Legitimate Interests (including profiling).

Effect: We will stop processing unless we can demonstrate compelling legitimate grounds that override your interests, rights, and freedoms, or the processing is necessary for legal claims.

8.6.2 Object to Direct Marketing

You have an absolute right to object to processing for direct marketing purposes, including profiling related to direct marketing.

Effect: We will immediately stop processing your data for marketing purposes.

How to exercise:

Click “unsubscribe” in marketing emails

Contact

Update your preferences in your account settings

8.6.3 Object to Processing for Research or Statistical Purposes

You have the right to object to processing for scientific or historical research or statistical purposes, unless the processing is necessary for a public interest task.

How to exercise: Submit a request to

8.7 Right Not to Be Subject to Automated Decision-Making

You have the right not to be subject to decisions based solely on automated processing, including profiling, that produce legal effects or similarly significantly affect you.

D2L’s practices: We do not engage in automated decision-making that produces legal effects or significantly affects Natural Persons, except:

With your explicit consent

When necessary for contract performance

When authorized by law with suitable safeguards

If we implement such automated decision-making in the future, we will:

Inform you of the logic involved

Explain the significance and consequences

Provide information about your right to human intervention

Allow you to contest the decision

8.8 Right to Withdraw Consent

Where processing is based on consent, you have the right to withdraw that consent at any time.

Effect: Withdrawal does not affect the lawfulness of processing before withdrawal.

How to exercise:

For marketing: Use unsubscribe links or contact

For cookies: Adjust cookie settings in our Cookie Preference Centre

For other consent: Contact

8.9 Right to Lodge a Complaint with a Supervisory Authority

You have the right to lodge a complaint with a data protection supervisory authority in:

Your country of habitual residence

Your place of work

The place of the alleged infringement

How to exercise:

EU users: Contact your local data protection authority. A list of EU supervisory authorities is available at: https://edpb.europa.eu/about-edpb/about-edpb/members_en

UK users: Information Commissioner’s Office (ICO) – https://ico.org.uk

Canadian users: The Office of the Privacy Commissioner of Canada oversees PIPEDA compliance – Office of the Privacy Commissioner of Canada – Office of the Privacy Commissioner of Canada and provincial privacy commissioners

oversee compliance with substantially similar provincial laws.

We encourage you to contact us first at so we can attempt to resolve your concerns directly. |

8.10 How to Exercise Your Rights

Verification: To protect your privacy, we will verify your identity before responding to rights requests. We may request additional information to confirm your identity.

No fee: Exercising your rights is generally free of charge. However, we may charge a reasonable fee for manifestly unfounded, excessive, or repetitive requests.

Response timeframe: We will respond to requests within one month. In complex cases, we may extend this by two additional months, and we will inform you of the extension and reasons within the first month.

Enterprise Users: If your organization is the data controller, submit requests to your organization. We will cooperate with your organization to facilitate your rights.

Contact:

Email:

Mail: D2L Corporation, Attn: Privacy Department, 137 Glasgow St Suite 560, Kitchener, ON N2G 4X8, Canada

9. DATA SECURITY

9.1 Our Commitment to Security

We implement appropriate technical and organizational measures to protect your Personal Information against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access.

9.2 Security Measures

Our security program includes:

9.2.1 Technical Measures

Encryption: Data encrypted in transit (TLS 1.2+) and at rest (AES-256)

Access controls: Role-based access control (RBAC), multi-factor authentication (MFA)

Network security: Firewalls, intrusion detection and prevention systems (IDS/IPS)

Vulnerability management: Regular security scanning, penetration testing

Secure development: Security by design, secure coding practices

Data segregation: Logical separation of customer data

9.2.2 Organizational Measures

Security policies and procedures: Comprehensive information security policies

Employee training: Regular security awareness training for all employees

Background checks: Screening of employees with access to Personal Information

Confidentiality agreements: All personnel bound by confidentiality obligations

Incident response plan: Procedures for detecting, responding to, and recovering from security incidents

Third-party management: Due diligence and contractual security requirements for service providers

Business continuity and disaster recovery: Backup systems and recovery procedures

9.3 Security Certifications and Compliance

We maintain industry-recognized security certifications and comply with security standards. For current information on our security certifications, please visit: https://www.d2l.com/security/compliance/

9.4 Data Breach Notification

In the event of a Personal Information breach that is likely to result in a risk to your rights and freedoms, we will:

Notify the relevant supervisory authority:

Within 72 hours of becoming aware of the breach (where feasible)

Provide details of the breach, its likely consequences, and measures taken

Notify affected Natural Persons:

Without undue delay if the breach is likely to result in a high risk to rights and freedoms

Provide clear and plain language information about the breach and recommended actions

Enterprise Users: If your organization is the data controller, we will notify your organization, who will determine whether to notify you directly.

9.5 Your Security Responsibilities

You are responsible for:

Keeping your passwords and authentication credentials secure and confidential

Not sharing your account with others

Logging out after using shared or public devices

Notifying us immediately if you suspect unauthorized access to your account

Using secure internet connections when accessing our services

9.6 Limitations

Despite our security measures, no system is completely secure. We cannot guarantee absolute security of data transmitted over the internet or stored on our systems. You provide Personal Information at your own risk.

10. CCPA

If you are a California resident, the California Consumer Privacy Act (CCPA) gives you rights in relation to your Personal Information. Please visit our California Privacy Notice for more information on the CCPA and on how to exercise these rights.

DEFINITIONS AND INTERPRETATION

Personal Information: Any information relating to an identified or identifiable natural person (data subject). An identifiable person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as name, identification number, location data, online identifier, or factors specific to physical, physiological, genetic, mental, economic, cultural, or social identity.

Processing: Any operation performed on Personal Information, including collection, recording, organization, structuring, storage, adaptation, alteration, retrieval, consultation, use, disclosure by transmission, dissemination, erasure, or destruction.

Personal Information Protection Legislation: Depending on your location, applicable privacy laws may include Canada’s Personal Information Protection and Electronic Documents Act (PIPEDA) and provincial laws, the United States’ Children’s Online Privacy Protection Act, as well as state laws like California Consumer Privacy Act, the European Union’s General Data Protection Regulation (GDPR), the United Kingdom’s UK General Data Protection Regulation and Data Protection Act 2018, Australia’s Privacy Act 1988, Brazil’s Lei Geral de Proteção de Dados, and Singapore’s Personal Data Protection Act.

Data Controller: The entity that determines the purposes and means of Processing Personal Data.

Data Processor: An entity that Processes Personal Data on behalf of a Data Controller.

Data Subject: An identified or identifiable natural person whose Personal Information is Processed.

Consent: Any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which they signify agreement to Processing of their Personal Information.

Special Categories of Personal Information: Data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data, health data, sex life, or sexual orientation.

FERPA: US Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. 1232g, et seq.

Supervisory Authority: In the EU, an independent public authority established by an EU Member State to monitor application of GDPR. For other regions, your local authority responsible for monitoring or enforcement of Personal Information Protection Legislation in your jurisdiction.

Third Party: Any person or entity other than the data subject, controller, Processor, and persons authorized to Process data under direct authority of the controller or Processor.

02 | Privacy Center

https://www.d2l.com/privacy-center/

Webpage text snapshot | Retrieved 10 October 2026

Welcome to D2L’s Privacy Center

Privacy and security are central to D2L’s mission to help make learning more personal and meaningful for everyone. We make no compromises in maintaining your data’s security.

What We Do With Data

You Own Your Data

And we keep it secure. We put the security, confidentiality, availability, and integrity of your data first. We are committed to the highest security standards and best practices.

We Don’t Give Your Data to Advertisers

We don’t collect, track, target, use, or sell learner data for advertising purposes. It’s that simple.

Your Privacy Is Our Starting Point

We always consider your privacy before we ever start building our products and services.

We Obey the Laws Where You Are

D2L hosts data in the cloud. The laws in your country govern its use—no matter where you are located.

A Message from John Baker

Privacy comes first at D2L. It always has and it always will. Our primary goal is to provide technology that can help learners focus on learning, – without having to worry about the safety and privacy of their data. We make no compromises on that.

Your data is your data, it’s really that simple.. You control how and to whom it is disclosed and we will not sell your data to advertisers or other third parties. And D2L will always be committed to high security standards.

This is my commitment to you.

Thank you for trusting D2L,

John Baker

Our Approach to Security

We believe that privacy and security must be at the core of the development process—not an afterthought. This is why we:

Learn more about Security and Privacy

Develop and test D2L Brightspace based on the principles set out in the Open Web Application Security Project (OWASP) Top Ten framework.

Leverage industry-leading AWS to deploy our platform within a highly reliable and secure architecture.

Go further than AWS security certifications with independent third-party audits to ensure our own practices meet and exceed industry standards.

Regularly achieve several key security and privacy certifications of our operational practices—audited annually—such as: ISO27701, ISO27001, SOC 1, SOC 2, ISO27018 and ISO27017

Learn more

Use Brightspace to train our employees on privacy and security to confirm their compliance with our internal security policies.

Run regular tests to ensure our employees are prepared to respond to and protect your data in any situation.

Regulatory Compliance

D2L values the vital importance of privacy and data security regulatory compliance. Our Brightspace platform supports compliance with rigorous standards including

The Privacy Act (Canada)

GDPR (The General Data Protection Regulation 2016/679)

FERPA (Family Educational Rights and Privacy Act)

COPPA (Children's Online Privacy Protection Act of 1998)

PIPEDA (Personal Information Protection and Electronic Documents Act)

LGPD (Brazilian General Data Protection Law)

FIPPA – Freedom of Information and Protection of Privacy Act (BC Bill 22)

CCPA – California's Consumer Privacy Act

Australian Privacy Act of 1988

Singapore Personal Data Protection Act (PDPA)

ISO 27701, ISO 27001, ISO 27018, ISO 27017 SOC 1 Type 2 and SOC 2 Type 2, Cloud Security Alliance (CSA), Security, Trust and Assurance Registry (STAR)

We are a proud signatory of the Student Privacy Pledge

Explore all our Certifications

Get to know us

Anna Forgione

Chief Legal Officer and Corporate Secretary

Anna Forgione

Chief Legal Officer and Corporate Secretary

Anna joined the company in 2013 and brings over 20 years of experience in corporate leadership, technology advocacy, business development, negotiations, and strategic planning. She is the Chief Legal Officer, Chief Privacy Officer and Corporate Secretary for the company and oversees all legal, governance, regulatory and compliance matters for D2L worldwide. Her responsibilities include directing company transactional, intellectual property, litigation, and acquisition matters.

Before joining D2L, Anna served as general counsel Americas for Open Text Corporation and assistant general counsel for Geac Computer Corporation. Anna was also a founding executive of Telephony@Work. Anna is an engaged community leader and holds various directorships for non-profit organizations, including The Canadian Children's Opera Company.

Anna holds a J.D. from Osgoode Hall and has been a member of the Ontario Bar Association since 1994.

Helpful Resources

Privacy StatementPrivacy Statement

GDPR PageGDPR Page

D2L Security and PrivacyD2L Security and Privacy

Privacy by DesignPrivacy by Design

Have any questions about our privacy or security practices?

We’d love to hear from you.

Contact Us

03 | Corporation Legal Policies | D2L

https://www.d2l.com/legal/

Webpage text snapshot | Retrieved 10 October 2026

Legal

Privacy statement

Learn more about our privacy statement

Terms of use

Learn more about our terms of use

Cookie Policy

Learn more about our cookie policy

California privacy notice

Learn more about our california privacy notice

D2L Trademarks

Learn more about our D2L Trademarks

General Data Protection Regulation (GDPR)

Learn more about our GDRP policy

Brightspace End User License Agreement

Learn more about our end user license agreement

D2L Responsible AI Principles

Learn more

D2L Modern Slavery Report

Learn More

04 | Do Not Sell My PI

https://www.d2l.com/legal/ccpa/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

California Privacy Notice

California Privacy Notice

Effective Date: January 1, 2020

Introduction

We at the D2L family of companies (“we”, “our” or “us”) are committed to protecting the privacy of our users. This privacy notice (“Notice”) supplements the information in our Privacy Statement and describes how we collect, use and share personal information about California residents and their rights with respect to that information.

Scope

This Notice applies only to “personal information”, as defined in the California Consumer Privacy Act of 2018 (the “CCPA”), that we collect as a “business” as defined in the CCPA, for example, when we collect personal information through our websites and marketing efforts.

Where we provide our offerings to consumers on behalf of our customers, we are considered a ‘service provider’ under the CCPA and we only use personal information to provide our services in accordance with our written agreement with our customers. In this case, the customer’s privacy notice governs the use of personal information (which could be your school, place of business, or organization).

What Personal Information We Collect

In the last 12 months, we have collected and/or disclosed for a business purpose the following categories of personal information:

Identifiers, such as your name, work address, telephone number, email address, job title and organizational affiliation. Online identifiers, such as your username for any of our websites, or the information we automatically collect through cookies and similar technologies used on our websites, as described in our Cookies Policy.

California Customer Records, (Cal. Civ. Code § 1798.80(e)) such as name, contact information, financial information (payment details you provide)

Protected classification characteristic, such as a disability (that you choose to provide to us for accommodation purposes)

Commercial information, such as the billing details we use to bill you for our services, your billing and payment history. We also collect information about your preferences regarding marketing communications and your participation in our events.

Internet activity or electronic network activity information, that we collect about your interaction with our websites, emails and other online content. We also collect information about your preferences for the marketing emails that we send.

Audio, electronic, and visual information, such as video or audio recordings of conversations with you made with your consent.

Geolocation Data, such as location information from your device or rough location generated based on IP address.

Professional or employment-related information that we collect in connection with our services to you, such as your job title, and employer information

Inferences drawn from the above information about your predicted characteristics and preferences.

Other Personal Information about you that is linked to the personal information above.

SOURCES OF PERSONAL INFORMATION

We obtain the categories of personal information listed above from the following categories of sources:

Directly from our customers. For example, from documents that our customers provide to us related to the services for which they engage us.

From your education institutions, business or organization.

Indirectly from our customers. For example, through information we collect from our customers in the course of providing services to them.

Directly and indirectly from activity on our website. For example, from submissions through our website portal or website usage details collected automatically and from your browser or device.

From third parties that interact with us in connection with the services we perform. For example, from business partners, service providers, and affiliates.

HOW WE USE PERSONAL INFORMATION

We use the categories of personal information from and about you for a variety of business purposes as described in our Privacy Statement. For example, we use personal information to respond to your inquires made through our websites; to organize and host events (webinars, conferences, meetings); to market to you; to operate our websites and services including personalization; To help maintain the safety, and security of our websites; To maintain and improve our services; and as otherwise permitted or required by law.

How We Share Your Personal Information

We may disclose your personal information for a business purpose. When we disclose personal information for a business purpose, we enter a contract that describes the purpose and requires the recipient to both keep that personal information confidential and not use it for any purpose except performing the contract. The categories of third parties to whom we may have disclosed personal information for a business purpose include:

Service Providers. Companies that provide us with services that help us provide services or operate our business, such as IT and software services, mailing services, marketing services, event management services, and cyber security services.

Affiliates. Our affiliates and subsidiaries, for purposes consistent with this Notice or to operate shared infrastructure, systems and technology.

Third parties. With your consent or as described to you at the time of collection of your personal information.

Data analytic providers. Providers that deliver the information we need to improve the user experience and serve up the content our visitors find most useful.

Business Partners. Such as technology partners, content partners, event sponsors, resellers

Social Networks. As described in our Cookies Policy.

Professional advisors. Our lawyers, accountants, bankers and other outside professional advisors in the course of the services they provide to us.

We do not sell your personal information for any monetary consideration. However, we do share your information (that is common with companies with an online presence) for other purposes that may be considered a “sale” under the broad definition in the CCPA. This includes sharing identifiers, commercial information and internet or other electronic network activity with advertising networks, website analytics companies, and event sponsors for a business purpose.

Your California Consumer Privacy Rights

The CCPA provides consumers (California residents) with specific rights regarding their personal information. This section describes your CCPA rights and explains how to exercise those rights.

Please note: If you are a user of our products and services on behalf of your organization (school, workplace, etc), contact your institution to exercise your rights.

THE RIGHT TO KNOW

Information. You can request the following information about how we have collected and used your personal information during the past 12 months:

The categories of personal information that we have collected.

The categories of sources from which we collected personal information.

The business or commercial purpose for collecting and/or selling personal information.

The categories of third parties with whom we share personal information.

The categories of personal information that we sold or disclosed for a business purpose.

The categories of third parties to whom the personal information was sold or disclosed for a business purpose.

Access. You can request a copy of the personal information that we have collected about you during the past 12 months.

THE RIGHT TO REQUEST DELETION

Deletion. You can ask us to delete the personal information that we have collected from you.

THE RIGHT TO OPT-OUT OF SALES

Opt-out. While we do not sell personal information in exchange for any monetary consideration, we do share personal information for other benefits that could be deemed a “sale,” as defined by the CCPA. You have the right to direct us to not sell your personal information

Nondiscrimination. You are entitled to exercise the rights described above free from discriminatory treatment prohibited by the CCPA.

If you would like to exercise your Right to Know or Right to Deletion, please fill out this request form, email with the subject line “California Rights Request”, or call 1-888-772-0325. Our privacy team will examine your request and respond to you as quickly as possible.

To exercise the Right to Opt-Out of personal information disclosure, you may submit a request by clicking the button below:

Do Not Sell My Personal Information

We cannot respond to your request or provide you with personal information if we cannot verify your identity or authority to make the request and confirm the personal information relates to you. Making a verifiable consumer request does not require you to create an account with us. We will only use personal information provided in a verifiable consumer request to verify the requestor’s identity or authority to make the request.

The Right to Opt in for Minors Under Age 16. We do not sell the personal information of minors we know to be under 16 years of age.

Other Information

We reserve the right to change this Notice at any time. If we make any material changes to this Notice, we will post the revised version to https://www.d2l.com/legal/ccpa and update the “Effective Date” at the top of this Notice. Except as otherwise indicated, any changes will become effective when we post the revised Notice on our website.

Contact Us

Please address any questions or concerns relating this Notice to D2L’s Data Protection Officer at

05 | Cookies Policy

https://www.d2l.com/legal/cookies-policy/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

D2L Cookies Policy

D2L Cookies Policy

Cookies Settings

Cookies Settings

Consent to the use of cookies.

For our website to function properly we use cookies. To obtain your valid consent for the use and storage of cookies in the browser you use to access our website and to properly document this we use a consent management platform: CookieFirst. This technology is provided by Digital Data Solutions BV, Plantage Middenlaan 42a, 1018 DH, Amsterdam, The Netherlands. Website: https://cookiefirst.com referred to as CookieFirst.

When you access our website, a connection is established with CookieFirst's server to give us the possibility to obtain valid consent from you to the use of certain cookies. CookieFirst then stores a cookie in your browser in order to be able to activate only those cookies to which you have consented and to properly document this. The data processed is stored until the predefined storage period expires or you request to delete the data. Certain mandatory legal storage periods may apply notwithstanding the aforementioned.

CookieFirst is used to obtain the legally required consent for the use of cookies. The legal basis for this is article 6(1)(c) of the General Data Protection Regulation (GDPR).

Data processing agreement

We have concluded a data processing agreement with CookieFirst. This is a contract required by data protection law, which ensures that data of our website visitors is only processed in accordance with our instructions and in compliance with the GDPR.

Server log files

Our website and CookieFirst automatically collect and store information in so-called server log files, which your browser automatically transmits to us. The following data is collected:

Your consent status or the withdrawal of consent

Your anonymised IP address

Information about your Browser

Information about your Device

The date and time you have visited our website

The webpage url where you saved or updated your consent preferences

The approximate location of the user that saved their consent preference

A universally unique identifier (UUID) of the website visitor that clicked the cookie banner

General

This page contains a description of the cookies we use on D2L Web sites, including www.D2L.com. Most Web browsers enable you to manage cookies through your browser settings. To learn more about cookies, including how to see what cookies have been set and how to manage and delete them, visit www.aboutcookies.org or www.allaboutcookies.org. As our Web sites and offerings materially evolve, we will review and update this Web page from time to time.

What are Cookies?

Cookies are small pieces of data placed on your web browser by the offerings you use or the Web sites you visit. Directive 2009/136/EC (the “Cookies Directive”), which amends Directive 2002/58/EC, came into force in the European Union (EU) on 25 May 2011. The Cookies Directive provides that “the storing of information or the gaining of access to information already stored, in the terminal equipment of a subscriber or user is only allowed on condition that the subscriber or user concerned has given his or her consent, having been provided with clear and comprehensive information”.

Cookies Used on D2L Web sites

When you visit a D2L Web site, you may encounter cookies described in the list below. Our lists are grouped based on the International Chamber of Commerce (ICC) cookie guide, which identifies four categories of cookies:

Strictly necessary cookies

Performance cookies

Functionality cookies

Targeting or advertising cookies

More Information on Google Analytics

We use Google Analytics to collect top level information about how visitors use certain D2L Web sites. Google Analytics provides the information we need to improve the user experience and serve up the content our visitors find most useful. The Google Analytics cookies store information about what pages people visit, how long they are on the site, how they got there and what they click on. Information supplied by Google Analytics helps us analyze site traffic to identify areas to improve in order to provide our visitors with a better experience. No personal information (for example, names or addresses) is gathered or stored, so this information cannot be used to identify individuals. For an overview of privacy at Google, click here. To opt out of being tracked by Google Analytics across all websites visit https://tools.google.com/dlpage/gaoptout.

Links to Third Party Offerings and Web Sites

We may also link to third party offerings of Web sites that use cookies like the ones described above. If you access another offering or Web site through a link that we have provided, the offering you are accessing or the site you are visiting is responsible for providing you with information about how they use cookies.

Questions

If you have any comments, questions or concerns about this page, the data that we collect from you or how that data is being used, or to report suspected misuse of your information, please contact us at or write to us at:

D2L Corporation

Attn: Privacy Officer

137 Glasgow Street, Suite 560

Kitchener, Ontario

N2G 4X8 Canada

Last Modified: February 15, 2023

06 | D2L's Third Party Subprocessors | D2L

https://www.d2l.com/legal/d2ls-third-party-subprocessors/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

D2L’s Third Party Subprocessors

D2L’s Third Party Subprocessors

Last Updated: September 1, 2026

At D2L, we are committed to transparency and accountability in the handling of client data. In delivering our services, we may engage select third-party service providers (“Sub-processors”) who assist us in supporting, developing, and operating our products and services. These sub-processors may process personal data in accordance with our instructions, consistent with applicable data protection laws and our contractual commitments. To support your trust in D2L, we maintain an up-to-date list of our current sub-processors, including details on their services, processing locations, and the types of data involved. You can view or download the latest version of our Sub-Processors list below.

Note that typical types of User Data include: first name, last name, learner records (e.g. courses, grades), location data, student unique identifier, email address, title/position, employer/institution, ID data, log-in information and Connection Data.

Cloud Providers & Internal Applications

Sub-Processor | Processing Location | Product | Purpose |

Amazon Web Services, Inc.

Amazon Web Services EMEA SARL

Collectively (“AWS”) | For Data storage: Customer Location Dependent AWS regions (including United States, Canada, Australia, Republic of Ireland, Singapore, India)

For Data processing: Customer Location Dependent AWS regions and, for certain AI inference services, global AWS infrastructure | All D2L Products | Cloud Hosting |

Microsoft O365 | Canada | Internal Operations | Corporate Productivity & Business Operations |

Salesforce.com, Inc. (Steelbrick CPQ) | Canada, United States | Internal Operations | Client Relationship Management |

Atlassian | Canada | Internal Operations | Project Management |

Planhat AB | United States | Internal Operations | Client Relationship Management and Global Support |

Qualtrics, LLC | Canada | Global Support | Surveys |

Tableau | Canada | Internal Operations | Customer Data Analysis, Reporting and Business Intelligence |

Smartsheet | United States, European Union | Internal Operations | Project Management, Product Development and Professional Services |

Salesloft, Inc. | United States, European Union | Internal Operations | Sales engagement and customer/prospect relationship management, including communication sequencing and meeting coordination |

Support Providers & Professional Services

Sub-Processor | Processing Location | Product | Purpose |

D2L Subsidiaries:

D2L Inc.

D2L Corporation

D2L Ltd

D2L Australia Pty Ltd

D2L Europe Ltd

D2L Asia Pte Ltd

D2L India Pvt Ltd

D2L Brasil Soluções de Tecnologia para Educação Ltda.

D2L Sistemas de Aprendizaje Innovadores

D2 R.L de C.V

H5P Group AS

D2L EU B.V. | Customer Location Dependent

(United States, Canada, Mexico, Australia, Republic of Ireland, Singapore, India) | D2L may use any of its subsidiaries to process customer data and may be acting as sub-processors to deliver the Services to customers. | Support and Professional Services |

Salesforce.com, Inc. (ServiceCloud) | Canada, United States | Global Support | Customer Support |

Forethought Technologies Inc. | United States | Global Support | Customer Support |

Natterbox | United Kingdom | Global Support | Customer Support, Telephony |

ANSR Source Content US LLC,

ANSR Source India Private Limited | United States, India | Professional Service | Implementation Services for Customers in India |

Language IO Inc | Canada | Global Support | Customer Support |

Microsoft Azure IDP | Canada | Global Support | SSO for Brightspace Community & connected tools |

SupportNinja | Canada | End User Support | Customer Support |

The Results Companies, LLC dba Results CX | Canada, United States, Mexico | Global Support | Customer Support |

Vanilla Forums ULC | Canada | Brightspace Community | Community Forums |

TollFreeForwarding.com | United States | Global Support | Customer Support, Telephony |

Qualtrics, LLC | Canada | Global Support | Surveys |

Development Support Providers

Sub-Processor | Processing Location | Product | Purpose |

EPAM Systems, Inc,

EPAM Systems Canada, Ltd. | United States, India, European Union, LATAM | All D2L Products | Software Development and Ancillary Services |

Agilisium Consulting LLC | India | Performance+ | Data Migration |

Platform Applications

Sub-Processor | Processing Location | Product | Purpose |

Google Analytics | United States | Mobile Applications | Product Analytics |

Hound Technology, Inc. (DBA Honeycomb) | United States | All | Insights & Performance Monitoring |

BrightIdea | United States, European Union | Product Idea Exchange (PIE) | Product Feedback |

Ironwasp Security Inc. (Domdog) | United States | Course Merchant | Security |

Optional Third-Party Applications

Sub-Processor | Processing Location | Product | Purpose |

Association Analytics | United States | Association Analytics | Learning Analytics |

Atomic Jolt, LLC | United States, Australia, Ireland | Atomic Search & Atomic Assessments | Text Searching and Content Authoring |

ClassEDU, Inc (AKA Class Technologies) | United States, Canada, United Kingdom, Germany, Japan, Singapore, Australia, New Zealand | Class for Higher Education, K12, and Corporate (Zoom and Teams) | Third-Party Training and Learning Integration for Conferencing |

Copyleaks Technologies Ltd. | United States, Europe | Copyleaks – Plagiarism Detector, and AI Content Detection | Plagiarism Detection |

Credly, Inc. | United States, Europe | Credly | Digital Credential Management |

Domo, Inc. | Customer Location Dependent

(United States, Republic of Ireland) | Performance Plus / P+ | Client Reporting |

FeedbackFruits BV | United States, Canada, Australia, Europe | FeedbackFruits Social Annotations, Team Based Learning and Polling, Peer Feedback, Tool Suite, and AI Practice | Pedagogy Tools |

Fishtail Technologies | Customer Location Dependent

(United States, Canada, Mexico, Australia, Republic of Ireland, Singapore, India) | Fishtail's "Empower" | SIS Integration |

Genius SIS, Inc. | Canada, United States | Genius Extended Administration Solution | Workflow Management |

Go1 | United States, Australia, European Union | GO1 Content, Go1 Premium Subscription | Training & Development |

Integrity Advocate Inc. | Customer Location Dependent

(Canada, United Kingdom, European Union) | Integrity Advocate Proctoring – Participation Monitoring, Exam Proctoring, Exam Proctoring Plus, Live Proctoring, and Expose AI | Plagiarism Detection & Proctoring |

Janison Solutions Pty Ltd | Australia, Singapore, United Kingdom, Europe | Janison Insights | Proctoring & Assessments |

K-16 | Customer Location Dependent | K-16: Scaffold Migration and Scaffold Archiving | Course Migration & Archiving |

OpenSesame, Inc. | United States, Europe | OpenSesame Subscription – OpenSesame Plus 25, OpenSesame Plus 100, OpenSesame Plus Complete | eLearning Marketplace |

ReadSpeaker | United States | ReadSpeaker WebReader/DocReader, TextAid and Custom Voice | Accessibility Tools |

Seesaw Learning, Inc | United States, United Kingdom, Australia | Seesaw – Seesaw Instruction + Insights, Early Literacy, and English Language Development (ELD) | Early & Primary Learning Platform |

ShuffleLabs, LLC | Customer Location Dependent

(Canada, United States, Australia, Republic of Ireland, European Union, Singapore) | Brightspace Course Connector for Microsoft Teams | Application Integration |

SchoolDay (Formerly Global Grid 4 Learning) | Canada, United States | GG4L Rostering Services and Grade Passback | Data Exchange Platform |

Workato, Inc. | United States, Australia, Europe | D2L Link | Integration and Automation |

YouSeeU, Inc. (DBA Bongo) | Customer Location Dependent

(Canada, United States, South America, Europe, Australia, Asia) | Video Assignments, Virtual Classroom, AI Coach, and Role Play | Video Assessment, Virtual Classroom, & AI-Powered Simulations |

YuJa, Inc. | Canada, United States, Europe, Australia, Singapore | YuJa – Panorama and Verity | Content Accessibility & Proctoring |

LearnWise Software International B.V. | AWS: EU (Dublin, Ireland), UK (London), US (Virginia), AUS (Sydney), CAN (Canada Central)

Microsoft Azure: Frankfurt, Germany, Sweden, France | Lumi Chat, Lumi Tutor, Lumi Feedback | AI Powered Tutoring, Feedback & Chat Support

Internal Analytics |

Honorlock, Inc. | United States | Brightspace | Proctoring |

Qwickly Inc. | United States, United Kingdom, Australia | Qwickly Attendance | Attendance, Engagement, and Reporting |

Drieam B.V. | EU (Netherlands) | Eduframe SIS | Student Information System (SIS) and Online Storefront |

Smiley Owl Tech S.L. | EU (Ireland) | SMOWLTech Proctoring | Online Proctoring and Exam Integrity |

Optional Third-Party Professional Services

Sub-Processor | Processing Location | Product | Purpose |

ANSR Source Content US LLC,

ANSR Source India Private Limited | United States, India | Brightspace | Course Content Development |

Hurix Systems Private Limited | India | Brightspace | Course Content Development & Migration Services |

Internal Analytics

Sub-Processor | Processing Location | Product | Purpose |

AWS Lambda

(Serverless Computing & Internal Analytics) | Canada, United States | Global Support | Personal Data Redaction & Automated Quality Assurance of Support Interactions |

07 | General Data Protection Regulation | D2L

https://www.d2l.com/legal/gdpr/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

General Data Protection Regulation

General Data Protection Regulation

Introduction

The EU General Data Protection Regulation (GDPR) came into effect on May 25, 2018. Although it is an EU regulation, its scope extends beyond the EU, affecting any entity that processes personal data of EU citizens, regardless of location. This document provides an overview of individual rights under the GDPR and how these rights impact D2L customers.

If you have been granted access to Brightspace or other D2L services by your institution (educational or otherwise), employer, or organisation (“Organisation”), you should contact them directly to understand their policies and practices regarding your personal data.

This document is intended for informational purposes only and should not be considered legal advice. For specific legal guidance, consult a qualified legal professional familiar with your compliance requirements.

D2L’s Approach to GDPR Compliance

D2L, a company with its roots in Canada, already aligns closely with GDPR principles due to Canada’s data protection framework. The EU has recognized Canada’s privacy laws as providing adequate protection for data transfers. More information on this adequacy decision can be found here: European Commission – Adequacy Decisions.

For EU operations, D2L utilizes AWS infrastructure located within the EU. Access to data by D2L’s affiliate offices is limited to support and maintenance activities, and such access is governed by EU Standard Contractual Clauses to ensure compliance with GDPR.

To reinforce our commitment to data security, D2L has achieved ISO 27001, ISO 27701, ISO 27017 and ISO 27018 certifications, ensuring that our data safeguards follow industry best practices. We conduct annual security audits and maintain our ISO certification to demonstrate compliance with GDPR. D2L is among the few Learning Management System (LMS) providers to hold compliance certifications directly rather than relying solely on hosting partners. For security-related details and certification requests, visit: D2L Security.

Rights of Individuals under the GDPR

The GDPR grants individuals several rights regarding their personal data. Below is an overview of these rights and how they relate to D2L’s Brightspace platform.

1. Right to Be Informed

Individuals must be informed about data collection and processing. D2L processes personal data based on a contractual agreement with you and relies on your Organisation to obtain appropriate legal consent from end-users. If a user contacts D2L directly regarding data collection, we will direct them to your Organisation and notify you of the request.

2. Right to Access Personal Information

Individuals have the right to access their personal data. Brightspace users can view most of their personal data directly through the platform, depending on permissions (e.g., administrators have more access than students). While D2L collects some system usage data (e.g., event logs, page views), it is typically anonymized. If you receive an access request requiring D2L’s assistance, please contact D2L Support to open a service ticket. We aim to fulfil such requests within 30 days, and we will notify you if we believe it will take longer to complete.

If D2L receives a data access request or subject access request directly from your users, we will instruct them to contact you, as you are the data controller.

3. Right to Erasure (Right to be Forgotten)

Individuals can request the deletion of their personal data when it is no longer necessary. However, this right is not absolute. If data is required to fulfil contractual obligations (e.g., student records necessary for graduation), it may still be retained. For data to be erased, please contact D2L support to open a service ticket. Administrators at organisations can archive data but not perform a full erasure.

D2L provides options within Brightspace to allow you to meet your data retention policies for your organisation.

4. Right to Restrict Processing

Individuals can request that data processing be restricted in specific cases, such as:

When data is inaccurate and needs correction.

When an objection to processing is under review.

When processing is unlawful but the individual prefers restriction over deletion.

When data is needed for legal claims. Brightspace provides tools to help you comply with these requirements.

Correcting inaccurate data in most circumstances is under your control with the features available in Brightspace or by changing data with which Brightspace synchronises.

5. Right to Object to Automated Decision-Making & Profiling

If automated processing affects an individual’s rights, they can:

Request human intervention.

Express their point of view.

Obtain an explanation and challenge decisions.

D2L’s tools may generate course success predictions, but ultimate decisions require human action.

6. Right to Rectification

Individuals have the right to correct inaccurate personal data. Most data can be updated directly within Brightspace or in systems synchronized with it. If assistance is needed, D2L Support is available to help.

7. Right to Data Portability

This right allows individuals to obtain their data in a portable format. With Brightspace, courses, achievements, and grades information are not directly transferable to another school or corporation; i.e., the assignments, materials, achievements in an Introduction to Astronomy course may not be taught in a similar named course at another school. There should be no expectation of individuals to move certain elements of personal information (such as achievements, quiz attempts) within Brightspace to be imported into any other school or corporate Learning Management System. For educational customers, the student transcript is the key piece of information that is transferable between institutions to determine course equivalence. Students who are using ePortfolio can export their learning artifacts files and import them into another ePortfolio system.

8. Right to Object to Data Processing

Individuals may object to processing based on:

Legitimate interests or public interest tasks.

Direct marketing.

Scientific or statistical research.

D2L processes personal data as necessary to provide you with the services. If we receive an objection from your users, we will direct them to you.

D2L does not use the data it collects through Brightspace and its associated products to market to our customers’ end-users. Information about data collected for marketing purposes through D2L corporate websites and our privacy policy surrounding how we use that information may be found here: https://www.D2L.com/legal/privacy/

Additional Resources

For more details on GDPR, visit the UK Information Commissioner’s Office (ICO) website: ICO GDPR Overview.

Legal Disclaimer

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08 | Terms of Use

https://www.d2l.com/legal/terms/

Webpage text snapshot | Retrieved 10 October 2026

D2L

Legal

D2L.com Company Website – Terms of Use

D2L.com Company Website – Terms of Use

Please note: If you were given access to the Brightspace platform by your organization, these terms do not apply to your use of Brightspace. You should contact your organization about any applicable term of use that may apply.

These terms of use apply to this list of websites (“the Site”) which are run by D2L Corporation (“D2L”) and provide information regarding D2L, its products, services, and opportunities that it provides (“the Service”). By accessing and using this Site, you agree to each of the terms and conditions set forth herein (“Terms of Use”). Additional terms and conditions applicable to specific areas of this Site or to particular content or transactions are also posted in particular areas of the Site and, together with these Terms of Use, govern your use of those areas, content or transactions. These Terms of Use, together with applicable additional terms and conditions, are referred to as this “Agreement.”

D2L reserves the right to modify this Agreement at any time without giving you prior notice. Your use of the Site following any such modification constitutes your agreement to follow and be bound by the Agreement as modified. The last date these Terms of Use were revised is set forth below.

integrationhub.brightspace.com/

Community.brightspace.com

D2L.com

Documentation.brightspace.com

trial.d2l.com

Docs.Valence.desire2learn.com

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If you would like to link to the Site we recommend that you connect directly to the home page. You may not connect directly to an asset on this Site. You may not mirror or frame the home page or any other pages of this Site on any other website or web page.

Downloading Files

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AMOUNT AS PERMITTED BY LAW. D2L RESERVES THE RIGHT TO REFUSE LIABILITY OUTSIDE OF JURISTICTIONS IN WHICH IT CAN BE HELD ACCOUNTABLE.

Indemnification

You understand and agree that you are personally responsible for your behavior on the Site. You agree to indemnify, defend and hold harmless D2L, its parent companies, subsidiaries, affiliated companies, joint venturers, business partners, licensors, employees, agents, and any third-party information providers to the Service from and against all claims, losses, expenses, damages and costs (including, but not limited to, direct, incidental, consequential, exemplary and indirect damages), and reasonable attorneys' fees, resulting from or arising out of your use, misuse, or inability to use the Site, the Service, or the Content, or any violation by you of this Agreement.

Privacy Policy

See D2L's Privacy Policy.

User Conduct

You agree to use the Site only for lawful purposes. You agree not to take any action that might compromise the security of the Site, render the Site inaccessible to others or otherwise cause damage to the Site or the Content. You agree not to add to, subtract from, or otherwise modify the Content, or to attempt to access any Content that is not intended for you. You agree not to use the Site in any manner that might interfere with the rights of third parties.

User Supplied Information

D2L does not want to receive confidential or proprietary information from you via the Site. You agree that any material, information, or data you transmit to us or post to the Site will be considered non-confidential and non-proprietary. If you supply or post any information or material to the Site, you guarantee to us that you have the legal right to post such material and that it will not violate any law or the rights of any person or entity. By posting material on the Site, you give D2L the royalty-free, irrevocable, perpetual, worldwide right to use, distribute, display and create derivative works from this material, in any and all media, in any manner, in whole or in part, without any restriction or responsibilities to you.

Password Security

If you register to become a D2L member any way, you are responsible for maintaining the confidentiality of your member identification and password information, and for restricting access to your computer. You agree to accept responsibility for all activities that occur under your member identification and password.

Class Action Waiver

Any arbitration will take place on an individual basis; class arbitrations and class/representative/collective actions are not permitted. Claims may only be brought in individual capacity, and not as a plaintiff or class member in any punitive class, collective and/or representative proceeding, such as in the form of a private attorney general action against the other. Further, the arbitrator may not consolidate more than one person's claims, and may not otherwise preside over any form of a representative or class proceeding.

Waiver of Jury Trial

You hereby knowingly and voluntarily waive your right to trial by jury with respect to any dispute arising out of or in connection with these Terms of Use.

General Provisions

ENTIRE AGREEMENT/NO WAIVER

These Terms of Use constitute the entire agreement of the parties with respect to the subject matter hereof. No waiver by D2L of any breach or default hereunder shall be deemed to be a waiver of any preceding or subsequent breach or default.

CORRECTION OF ERRORS AND INACCURACIES

The Content may contain typographical errors or other errors or inaccuracies and may not be complete or current. D2L therefore reserves the right to correct any errors, inaccuracies or omissions and to change or update the Content at any time without prior notice. D2L does not, however, guarantee that any errors, inaccuracies or omissions will be corrected.

ENFORCEMENT/ CHOICE OF LAW/ CHOICE OF FORUM

If any part of this Agreement is determined by a court of competent jurisdiction to be invalid or unenforceable, it will not impact any other provision of this Agreement, all of which will remain in full force and effect. Any and all disputes relating to this Agreement, D2L's Privacy Policy, your use of the Site, any other D2L website, the Service, or the Content are governed by, and will be interpreted in accordance with, the laws of the Province of Ontario, Canada, without regard to any conflict of laws provisions.

CLAIMS OF COPYRIGHT INFRINGEMENT

D2L respects the intellectual property of others, and we ask our users do the same. We respond expeditiously to clear notices of alleged copyright infringement and terminate accounts of repeat infringers according to the process set out in the U.S. Digital Millennium Copyright Act or the laws of another jurisdiction.

If you believe your copyrights are being violated and want to notify us, you can find information about submitting notices and D2L's policy about responding to notices in our Notice and Takedown Procedure.

Date of Last Modification: 12/05/2022

09 | Security

https://www.d2l.com/security/

Webpage text snapshot | Retrieved 10 October 2026

Built-in Protection From Day One

At D2L, we take security and privacy very seriously. We act as a trusted partner, putting our client's security and data confidentiality, availability and integrity first. Following a privacy-by-design approach across the full product lifecycle, our process is globally recognized with certifications that validate how we protect sensitive learner and institutional data.

Privacy, security, resilience and standards-based assurance are built into D2L Brightspace from the start.

Development and testing

Operations and support

Ongoing improvement

First Major LMS

First major LMS to achieve ISO 27001 certification.

Continuous Certification

Continuous ISO 27001 certification since 2014, reflecting more than a decade of proven security program maturity.

Partner Certification

First learning platform to offer joint partner certification with 1EdTech.

ISO Portfolio

Comprehensive ISO certification portfolio across security, cloud controls and privacy.

Privacy by Design

Protection Engineered Into Every Layer

Privacy and security are built into D2L Brightspace from the start.

Learning platforms hold deeply personal information about learners, educators, and organizations. D2L takes a privacy-by-design approach to help protect that information across the full lifecycle of our products and services, from development and testing through operations, support and ongoing improvement.

Global Standards

Proven Security Through Global Standards

D2L maintains a rigorous security and privacy program that is regularly assessed against recognized global standards. These certifications and assessments give customers a transparent way to evaluate how D2L manages security, privacy, cloud controls and data protection obligations.

Customers and prospects can review D2L's available certifications and security documentation, including ISO/IEC 27701, ISO/IEC 27001, ISO/IEC 27018, ISO/IEC 27017, SOC reports, CSA STAR, TX-RAMP, and Internet2 Cloud Scorecard resources here.

For more information on D2L's compliance with data privacy laws, including the GDPR and CCPA, please see resources here.

Layered Safeguards

Safeguards You Can Trust

D2L uses layered technical, administrative and operational safeguards to protect D2L Brightspace and the data entrusted to us. These include secure connections using TLS, unique user sessions, logging of transactions and originating IP addresses, configurable session timeouts, password policies, delegated authentication support, secure logical separation of customer data and customer-controlled access settings.

These safeguards help organizations manage access, reduce unnecessary exposure and support their own privacy and security obligations.

Continuity and Resilience

Built for Continuity and Resilience

Protecting learning means more than protecting records. It also means helping organizations maintain access to the systems learners, educators and administrators rely on every day. D2L Brightspace is designed with redundancy, scalability and disaster recovery capabilities to support service continuity and recovery.

D2L stores customer data in secure data centers and replicates it over secure links to a disaster recovery data center, helping support restoration of the D2L Brightspace service should the need arise.

What makes D2L an industry leader in security?

Cloud Infrastructure

Cloud Infrastructure

Secure, resilient infrastructure that supports reliable access.

Best Practices

Best Practices

Layered safeguards that manage access and reduce exposure.

Compliance

Compliance

Recognized standards that help customers evaluate trust.

Protection

Protection

Built-in safeguards for Brightspace and customer data.

FAQ

How does D2L help protect student and institutional data?

D2L uses layered privacy and security safeguards across D2L Brightspace, including secure connections, session controls, logging, configurable access settings, logical data separation, employee training, security testing, and independent third-party audits. D2L also maintains certifications and assessments across recognized privacy, security, and cloud control standards.

What makes D2L’s privacy program independently verifiable?

D2L maintains certifications and assessments including ISO/IEC 27701, ISO/IEC 27001, ISO/IEC 27018, ISO/IEC 27017, SOC reports, CSA STAR, TX-RAMP, and Internet2 Cloud Scorecard resources. These help customers evaluate D2L’s controls and security practices using recognized frameworks.

What is D2L’s role in protecting customer data?

For enterprise D2L Brightspace users, the customer organization typically acts as the controller of personal information, and D2L acts as a processor. D2L processes personal information under the controller’s instructions and for the controller’s purposes, while providing configurable privacy and security features to help customers manage access and protect data.

How does D2L support continuity and recovery?

D2L Brightspace is designed with redundancy, scalability, and disaster recovery capabilities. Customer data is stored in secure data centers and replicated over secure links to a disaster recovery data center to help support service restoration in the event of a catastrophic event.

Have a security item to raise with the D2L team?

Please send the information to .

10 | Best Practices Best Practices Layered safeguards that manage access and reduce exposure.

https://www.d2l.com/security/best-practices/

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D2L Security and Privacy

Security Best Practices

Your Security, Our Priority

Your private data needs to stay that way. Which is why we design our products and services to protect it. With robust safeguards, continuous monitoring and real-time security insights, nobody minds your business but us.

Eliminating Vulnerabilities

Prevention

A strong foundation relies on solid building blocks. We favour languages and frameworks with inherent memory safety, built-in XSS prevention, and SQL injection protection.

Detection

The first step to correcting a vulnerability is to identify it—that’s why we’ve integrated static application security testing (SAST) tools into our CI/CD pipeline.

Safeguarding

We store data using secure cloud infrastructure and reinforce its protection by implementing security best practices.

Security in Every Step

Your security is top of mind at every stage of our Software Development Lifecycle (SDLC).

Design

Security lays the foundation for design—so it’s prioritized early in our process.

Quality

We keep a watchful eye on all product changes. Any—and every—code update is reviewed for quality by our skilled product team.

Expertise

Our developers are trained on threat modelling and other security principles. Under their expert guidance we’ve implemented a fortified SDLC, ensuring our software is secure every step of the way.

Neutralizing Threats

Testing

We run periodic dynamic application security testing (DAST) scans, work closely with security researchers and perform annual 3rd party penetration tests to identify—and correct—any weaknesses in our product’s security.

Training

Security and learning go hand in hand. Our mandatory employee training program is extensive and dynamic—we are always looking for new ground to cover.

Risk Management

We operate an ISO 27001 certified risk management program that ensures vulnerabilities are identified, prioritized and addressed according to documented service level objectives (SLOs).

Monitoring

Disruption-free patches and updates keep our software and infrastructure secure as we closely monitor security threats and vulnerabilities.

Keeping You in the Loop

No Surprises

We maintain open communication with our customers about the security of our products, including clear documentation of security features, updates and any necessary precautions or issues that require customer action.

Dependable

We work with customers to identify and remove unsafe configurations and we never charge extra for implementing additional security frameworks.

Secure Set-up Assistance

We support and encourage the use of single sign on (SSO) authentication to implement multi-factor authentication (MFA) for all users without additional credentials or MFA prompts.

Partnership

We’re happy to work with customers’ security teams to provide logs and analysis to support security investigations.

Network Infrastructure Protection

We take a layered approach to protecting our network infrastructure and resources.

Network Firewall guards the network-level with capabilities such as stateful inspection and intrusion prevention. Amazon Virtual Private Cloud (VPC) security group provides protection at the host-level. Web Application Firewall protects the application-level.

Amazon VPC helps keep traffic segmented using Private Subnet, Public Subnet and Network Load Balancer. These VPC services separate traffic between network boundaries.

We deploy cloud security posture management technology throughout our infrastructure. This technology collects events from end points and enables monitoring, alerting, and remediation of compliance risks and misconfigurations in cloud environments.

Threat and intrusion detection services continuously monitor cloud environments for malicious activity.

Deep packet inspection technology is available for forensics if required.

Secure Transmission

Connection to the Brightspace environment is established through TLS cryptographic protocols with RSA® encryption, ensuring that customers have secure connection from their browsers to our service.

Individual user sessions are identified and re-verified with each transaction using a unique token created at login.

Denial of Service Monitoring

Our internal network technology—such as firewalls and WAFs—protects against denial of service (DoS) attacks.

We use AWS Shield to protect against distributed denial of service (DDoS) attacks. This service provides detection and mitigation for volumetric, protocol and DDoS attacks.

Vulnerability management and patching

System Hardening

Before a server image is certified, we disable unnecessary services and close all ports. We use the following organizations' templates to validate that the image is aligned with industry-standard best practices:

National Institute for Standards & Technology (NIST)

Center for Internet Security (CIS)

Microsoft Baseline Security Analyzer (MBSA)

Vulnerabilities and Patching

We test all code for security vulnerabilities before release and regularly scan its network and systems for vulnerabilities.

Our experts regularly review any security patches from underlying software and operating systems to assess the critical nature, risk, and potential effect to D2L services.

Annual Third Party Assessments

We employ a third party to conduct penetration tests against the Brightspace platform annually.

Endpoint threat and protection

Anti-virus software is deployed on all personnel laptops and desktops and is centrally managed to ensure all DAT files are up to date. Centralized reporting ensures malware infections are properly quarantined and escalated for further actions where needed.

Application Security

Applications are developed using the OWASP Top Ten framework and various security components are integrated into application architecture. Security analysts regularly look for weaknesses through code reviews and application scans. Third parties validate the technical controls by conducting regularly scheduled network penetration and application vulnerability tests.

Incident Management

Our Security and Privacy Incident Management process handles security and privacy incidents. This process can be initiated by a D2L customer, internal D2L employee or the public. If a security incident is identified, the following high-level process is followed:

Monitoring and Awareness: A security and/or privacy incident is identified, communicated to the Security Incident Response Team (SIRT).

Detection and Analysis (triage): The incident is assessed to determine the severity, priority, scope and impact. This step can include evidence preservation and containment activities.

Mitigation: Recommendations are created and implemented to contain, eradicate and/or contain the incident in question.

Recovery: Containment is complete. Where applicable, scanning of environments occurs to ensure recovery is complete.

Communications: This can include communications with internal resource teams, stakeholders and D2L customers. Based on the findings of triage and analysis, the appropriate communications are drafted, approved and shared.

Post Incident Activity: In this stage, lessons learned are completed to gather feedback and evolve incident response process and procedures. Where applicable, the root cause is identified and logged.

Vendors and Subcontractors

We vet all applicable vendors and subcontractors to ensure they too provide an appropriate level of security.

Security Awareness

Our security awareness program ensures that employees understand the importance of security and its intersection with their workday.

New employees are required to take security training, and training completion is audited throughout the year.

The Information Security team leverages several security threat intelligence sources to keep up to speed on the latest security threats. This information is shared through regular security awareness campaigns to help D2L staff are informed of these threats and what to do if they encounter them.

Secure by Design

We are committed to the continuous refinement of our security operations and practices, including ensuring that security is treated as an integral aspect of the D2L product roadmap. Because when your private data stays that way, everyone wins.

Our Pledge to Security

11 | Compliance Compliance Recognized standards that help customers evaluate trust.

https://www.d2l.com/security/compliance/

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D2L Security and Privacy

Security & Privacy Compliance

Security & Privacy Compliance

We take our responsibility to protect the confidentiality, availability and integrity of your data seriously, which is why we have the following certifications:

ISO/IEC 27701:2019

ISO/IEC 27701:2019 is an extension to ISO/IEC 27001 and ISO/IEC 27002 for Privacy Information Management — Requirements and Guidelines. It provides additional guidance for the protection of privacy and for establishing, implementing, maintaining and continually improving a Privacy Information Management System (PIMS).

ISO/IEC 27701 provides evidence that personal information is processed in compliance with applicable data and privacy legislation and contractual requirements. It extends the technical measures of implementing information security to further include and address privacy requirements. Essentially, it's a framework for organizations to manage privacy risks and implement appropriate measures – with a focus on personal information.

The standard helps companies align with global privacy regulations and enhances data protection practices. It requires systematic evaluation of privacy risks, implementation of comprehensive privacy controls, and ongoing management to maintain certification.

The goal is to ensure effective privacy measures and build customer trust in data protection practices.

Check and Download certification for ISO/IEC 27701: 2019

ISO/IEC 27001:2022

ISO/IEC 27001:2022 is a security management standard that specifies security management best practices and comprehensive security controls following the ISO/IEC 27002 best practice guidance. This is a widely-recognized international security standard. Certification in the standard requires us to:

Systematically evaluate our information security risks, taking into account the impact of company threats and vulnerabilities

Design and implement a comprehensive suite of information security controls and other forms of risk management to address company and architecture security risks

Adopt an overarching management process to ensure that the information security controls meet our information security needs on an ongoing basis

The key to the ongoing certification under this standard is the effective management of a rigorous security program. The Information Security Management System (ISMS) required under this standard defines how we perpetually manage security in a holistic, comprehensive way. The ISO/IEC 27001 certification is specifically focused on the D2L ISMS and measures how our internal processes follow the ISO standard. Certification means a third party accredited independent auditor has performed an assessment of our processes and controls and confirms they are operating in alignment with the comprehensive ISO/IEC 27001 certification standard.

Check and Download certification for ISO/IEC 27001:2022

ISO/IEC 27018:2019

ISO/IEC 27018:2019 establishes commonly accepted control objectives, controls and guidelines for implementing measures to protect Personally Identifiable Information (PII) in accordance with the privacy principles in ISO/IEC 29100 for the public cloud computing environment.

In particular, ISO/IEC 27018:2019 specifies guidelines based on ISO/IEC 27002, taking into consideration the regulatory requirements for the protection of PII which might be applicable within the context of the information security risk environment(s) of a provider of public cloud services.

Check and Download certification for ISO/IEC 27018:2019

ISO/IEC 27017:2015

ISO/IEC27017:2015 gives guidelines for information security controls applicable to the provision and use of cloud services by providing:

additional implementation guidance for relevant controls specified in ISO/IEC 27002;

additional controls with implementation guidance that specifically relate to cloud services.

This Recommendation provides controls and implementation guidance for both cloud service providers and cloud service customers.

Check and Download certification for ISO/IEC 27017:2015

TX-RAMP

The Texas Risk and Authorization Management Program – or TX-RAMP – aims to provide a standardized approach to security assessment, authorization, and continuous monitoring of cloud computing services used by Texas state agencies, including public higher education institutions.

This certification means that D2L Brightspace can continue operations in Texas with state agencies and education institutions. TX-RAMP adds to D2L's existing security certifications, including ISO/IEC 27001, ISO/IEC 27017, ISO/IEC 27018 and ISO/IEC 27701. This widely recognized international security standard requires D2L to maintain an ongoing, effective management of a rigorous security program.

Learn more about TX-RAMP

Cloud Security Alliance (CSA) Security, Trust And Assurance Registry (STAR))

As part of the Cloud Security Alliance (CSA) Security, Trust and Assurance Registry (STAR) Self-Assessment program, D2L submits a self-assessment report, the Consensus Assessments Initiative Questionnaire (CAIQ), that documents our compliance to CSA published best practices.

The STAR program includes a complimentary registry that documents the security controls provided by D2L to manage our cloud instances. This publicly accessible registry is designed for users of our cloud services to assess our specific security practices and assist our current and prospective customers in responding to their security questions.

The Consensus Assessments Initiative Questionnaire (CAIQ), which provides industry-accepted ways to document what security controls exist in our Software as a Service (SaaS) offering.

Copy of D2L's CAIQ is located at: https://cloudsecurityalliance.org/star-registrant/desire2learn

I2 Cloud Scorecard

As participants in the Internet2 Cloud Scorecard, D2L has made available common security and compliance information in one easy to reference location. You can view the D2L Brightspace Cloud Scorecard. The Cloud Scorecard questionnaire, designed by higher education institutions, is now available for research and education institutions to use to efficiently assess standards.

The scorecard is a self-assessment completed using standards and best practices developed within the research and education community. Your institution can use the scorecard standards to benchmark or evaluate services against key criteria.

SOC 1® Type II & SOC 2® Type II

Service Organization Control (SOC) Reports are independent third-party examination reports that demonstrate how D2L achieves key compliance controls and objectives. The purpose of these reports is to help you and your auditors understand the D2L controls established to support operations and compliance.

The D2L SOC Reports include four of the Trusted Services Principles: Security, Confidentiality, Processing Integrity and Availability.

To request a copy of our most recent SOC report(s), please contact your account representative.

Cyber Essentials

Cyber Essentials helps organizations guard against the most common cyber threats and demonstrates their commitment to cybersecurity.

Cyber Essentials is an effective, government-backed scheme that helps protect organizations, regardless of their size, against a whole range of the most common cyber-attacks.

The Cyber Essentials self-assessment option provides organizations with protection against a wide variety of the most common cyber-attacks. This is important because vulnerability to basic attacks can mark organizations out as targets for more in-depth unwanted attention from cyber criminals and others.

Cyber Essentials Certification offers organizations peace of mind that their defences will protect against the vast majority of common cyber-attacks simply because these attacks are looking for targets which do not have the Cyber Essentials technical controls in place.

Cyber Essentials shows organizations how to address those basics and prevent the most common attacks.

12 | Data Center Security | D2L

https://www.d2l.com/security/data-centers/

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D2L Security and Privacy

Data Center Security

Security Data Centers

D2L hosted services are provided by Amazon Web Services (AWS). Physical and operational security controls are implemented and managed by AWS. Details on these controls can be reviewed at AWS Data Centers information page, AWS' data center controls include

Physical and Environmental Security

Fire Detection and Suppression

Power

Climate and Temperature

Storage Device Decommissioning – AWS uses the techniques detailed in NIST 800-88 ("Guidelines for Media Sanitization") as part of the decommissioning process.

Amazon's infrastructure fault tolerant design – Core applications are deployed in an N+1 configuration, so that in the event of a data center failure, there is sufficient capacity to enable traffic to be load-balanced to the remaining sites.

Certification – AWS holds numerous security certifications, which can be reviewed at https://aws.amazon.com/compliance/programs/

13 | Protection Protection Built-in safeguards for Brightspace and customer data.

https://www.d2l.com/security/protection/

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D2L

D2L Security and Privacy

Security Policies and Protection

Security Policies and Protection

Policies

D2L has privacy and security-conscious policies that apply to all of its information handling practices.

Contractual privacy protection for customers

D2L's contracts include confidentiality provisions that prohibit D2L from disclosing customer confidential information, including customer data, except under certain defined circumstances, such as when required by law.

D2L agrees not to access customer's accounts, including customer data, except to maintain the service, prevent or respond to technical or service problems, at a customer's request in connection with a customer support issue, or where required by law.

Privacy statement

For information collected on D2L's Web sites, D2L provides assurances around the types of information collected, how that information may be shared and how that information may be used. D2L offers individuals the opportunity to manage their receipt of marketing and other non-transactional communications. D2L offers individuals the opportunity to update or change the information they provide.

View D2L's web site privacy statement

Code of conduct, confidentiality agreements, and information security policies

Every D2L employee must follow D2L's code of conduct, sign a confidentiality and non-disclosure agreement as a condition of employment, and follow D2L's information security policies.

Practices

D2L's privacy and security program includes having the appropriate people in place to create, manage and drive security, privacy and policy and communicating with personnel about current issues and best practices.

Internal training and communications for D2L personnel

D2L regularly communicates with personnel about its obligation to safeguard confidential information. D2L provides online training on confidentiality, privacy, and information security for all new employees. All D2L personnel are required to complete annual privacy and security training and are tested on the materials presented. D2L communicates with all personnel about privacy and information security awareness throughout the year.

Customer end user awareness

D2L encourages all of its customers and users to adopt industry-standard solutions to secure and protect their authentication credentials, networks, servers, and computers. D2L communicates with its customers about current issues and trends and informs customers about security issues when necessary and appropriate.

People

D2L has an Information Security Team under the Chief Technology Officer, that is responsible for managing and maintaining the Information Security Management System and program.

The Chief Privacy Officer is responsible for D2L's privacy program, including compliance with applicable privacy and data-protection laws.

The Information Security Risk and Compliance Manager is responsible for ensuring policies are kept up to date, enforced and organizational risks are identified and mitigated tactically and strategically through security policies. Additionally, all D2L personnel are required to follow D2L's confidentiality, privacy, and information security policies.

Human Resources

All D2L employees must successfully go through a security background check before they can begin working at D2L.

Technology

D2L maintains a variety of technical measures to protect the D2L Brightspace service. These measures are implemented in alignment with various industry recognized privacy and security standards D2L is certified with.

See for a full list of certifications

Default Privacy and Security Features

Application features that protect customer data

Connection to the D2L Brightspace service is via transport layer security (TLS), ensuring that its customers have a secure connection to their data. Individual user sessions are uniquely identified and re-verified with each transaction.

Application logs record the creator, last updated, timestamps, and originating IP address for every record and transaction completed. Customers' passwords are not accessible by D2L personnel

Security controls include unique, non-predictable session tokens, configurable session timeout values, password policies, sharing rules, and user profiles

Logical separation of customer data

Hardware and software configurations are designed to provide secure logical separation of customer data.

The D2L Brightspace service supports delegated authentication.

Network security measures

Multiple layers of external firewalls

Intrusion-detection & prevention sensors

Security information and event management tools

Continuous vulnerability scanning and external penetration testing

Redundancy and scalability

The D2L Brightspace service is highly scalable and redundant, allowing for fluctuation in demand and expansion of users while greatly reducing the threat of outages. Load-balanced networks, pools of application servers, and clustered databases are features of D2L's design.

Disaster recovery

All customer data is stored in secure data centers and is replicated over secure links to a disaster recovery data center. This design provides the ability to rapidly restore the D2L Brightspace service in the case of a catastrophic event.

Customer-controlled privacy and security settings

Customers may determine which of their respective designees can access different categories of data.

Customers may set customizable password rules.

Customers may define log-off times for inactivity.